

MALICIOUS PROSECUTION

MEANING

The tort of malicious prosecution consists of unsuccessful criminal proceedings against another person, maliciously and without reasonable and probable cause and thus it provides redress for those who are prosecuted without cause and with malice. This tort is also applicable to some other proceedings but primarily it is concerned with criminal proceedings.

In an action for malicious prosecution the plaintiff can claim for:

- (i) damage to the person
- (ii) damage to the property; and
- (iii) damage to the reputation

ESSENTIAL ELEMENTS

In an action for malicious prosecution plaintiff must prove: -

- (a) That he was prosecuted by the defendant.
- (b) That the proceedings complained of terminated in favour of the plaintiff.
- (c) That the prosecution was instituted against him without any reasonable or probable cause.
- (d) That the prosecution was instituted with a malicious intention, that is, not with the mere intention of carrying the law into effect, but with an intention which was wrongful in point of fact.
- (e) That he has suffered damage to his reputation or to the safety of person, or to the security of his property.

DISTINCTION BETWEEN FALSE IMPRISONMENT AND MALICIOUS PROSECUTION

1. False imprisonment is wrongfully restraining the personal liberty of the plaintiff; malicious prosecution is wrongfully setting the criminal law against him.
2. In false imprisonment it is the act of the defendant itself or its agents which has caused the injury to the plaintiff; in malicious

prosecution it is the act of the court although at the instance of the defendant which has caused the injury complained of to the plaintiff.

3. In false imprisonment the personal liberty of the plaintiff is wrongfully restrained by the private individual either personally or by setting a ministerial officer in motion, while in malicious prosecution the arrest is secured under judicial sanction.
4. In the false imprisonment the onus lies on the defendant to plead and prove affirmatively the existence of reasonable and probable cause a justification whereas in action for malicious prosecution the plaintiff must allege and prove affirmatively its non-existence.
5. Imprisonment is a tort per se, prosecution is not in itself; and as such false imprisonment is itself a tort while prosecution is not itself a tort but it becomes a tort, when it is malicious and without reasonable and probable cause.
6. Malice is an essential ingredient in an action for making prosecution but in an action for false imprisonment it is not necessary for the plaintiff to prove that the defendant was actuated by malice.
7. In an action for malicious prosecution two things are required to prove, viz., both malice and the absence of any reasonable or probable cause for the proceeding complained of; but in an action for false imprisonment liability is created, in general even by honest and inevitable mistake and it is no defence that the defendant had no malice but a bona fide mistake.
8. Damage is the gist of the action for malicious prosecution, in which it has to be specially proved that the plaintiff has suffered in person, reputation or pocket, but not so in an action of false imprisonment.